

M2.2 Rules of Evidence – Tendency and Coincidence RASE

Learner Instructions

You are assigned to prosecute a contested hearing where the accused has been charged with stalking. The accused and complainant had been in a 2-year relationship but the complainant ended the relationship one month before the charge date.

The charge relates to the accused allegedly following the victim around a shopping centre for several hours. The accused's explanation in the ROI is that he was not following the complainant, he just happened to be shopping there himself. He did see the complainant but there was no reason for him to leave as there was no intervention order in place.

10 weeks prior to the hearing you served a notice on defence of your intention to adduce tendency evidence, which outlined the tendency to be alleged as "to act in a particular way namely, to monitor the whereabouts of the complainant".

To support the tendency alleged the notice outlines the following evidence:

The complainant will give evidence that when she was in a relationship, he was very jealous and would always want to know where she had been. This manifested in the following behaviours—

On one occasion he had followed when she was out with friends.

He also took her phone on a number of occasions to see who she had been texting and calling.

If he didn't know where she was, he would call her friends and work to try and locate her.

Friends will give evidence that he called them looking for her on a number of occasions.

At the beginning of the contested hearing the Magistrate, after looking at the tendency notice, asks you how you say the tendency evidence can be admitted into evidence.

What is your response? (IRAC format preferred)